

Special Notice
Commercial Solutions Opening (CSO)
H92240-26-S-C001
Naval Special Warfare Command

SECTION 1 – INTRODUCTION

1.1 Naval Special Warfare Command (NSWC) and its subordinate and associated commands seek to accelerate the development, procurement and integration of unmanned systems (UxS) capabilities in support of the Joint Force, Special Operations Forces (SOF), and allied SOF.

1.2 NSWC seeks to award Federal Acquisition Regulation (FAR) contracts or Other Transaction Authority agreements (OT) (see 10 U.S.C. §§ 4021-23) to provide a new method of delivering UxS systems capability called “UxS as a service”, First Person View (FPV) platforms, and UxS Training. Resultant contracts or agreements should provide systems and/or training with a broad range of capabilities that directly support mission effectiveness in terms of platforms, payloads, Processing-Exploitation-Dissemination (PED), programming (i.e., firmware, software, and artificial intelligence (AI)), communications/data transfer, Command and Control (C2) systems, components, and/or material to be acquired, developed, or already in use by NSWC, United States Special Operations Command (USSOCOM), the Department of War (DoW), or the U.S. Government, as well as interagency and FVEY partners. As such, under the authority of DFARS 212.70, NSWC releases this Commercial Solutions Opening.

1.2.1 NSWC anticipates the award of a Firm-Fixed Price type contract in accordance with FAR Part 12. Offerors are encouraged to review FAR 52.212-4 and 52.212-5 for standard terms and conditions of a FAR Part 12 contract.

1.2.2 In addition, NSWC may award an OT in accordance with 10 U.S.C. 4022-23. Non-FAR Contracts and Agreements are anticipated with nontraditional and traditional defense contractors to carry out projects that are directly relevant to enhancing the mission effectiveness of the SOF Operator and the supporting platforms, systems, components, or material to be acquired or developed by the NSWC, or the improvement of platforms, systems, components, or materials in use by NSWC.

1.3 Use of a CSO in accordance with DFARS Subpart 212.70 is considered to be a competitive procedure for the purposes of 10 U.S.C. chapter 221 and FAR 6.102 and the procedures set forth in this announcement satisfy the competition requirements within 10 U.S.C 4022(b)(2) and 4022(f)(2)(A). Contracting Officers shall treat items, technologies, and services acquired using a CSO as commercial items. Agreement Officers may make awards in accordance with 10 U.S.C. §§ 4021-23. Awards made in accordance with 10 U.S.C. §§ 4023 are not subject to competition requirements.

1.4 This Commercial Solutions Opening (CSO) will make awards to proposals for innovative technologies through a multi-phased, competitive process throughout 2026/2027. This CSO outlines the competitive procedures to submit a response to the specified Area of Interest (AOI) and consists of three-phases: Solution Brief/White Paper, Demonstration/Pitch, and Proposal.

1.4.1 Phase I (Solution Brief/White Paper): Solutions will be sought under each specified UxS technology AOI. Initial submissions will be requested as a Solution Brief (SB) generally in the form of a White Paper (WP) or Scout Card (SC) through the Vulcan Platform. A team of Government subject matter experts (SMEs) for the relevant AOI will evaluate each submission for advancement to Phase II based on its potential to address capability gaps within the identified AOI. **The Government may elect to proceed directly to Phase III after a successful Phase I evaluation.**

1.4.2 Phase II (Demonstration/Pitch): Solutions selected in Phase I to proceed to Phase II will undergo further evaluation in Phase II typically in a demonstration and experimentation setting. The Government plans to host solution providers at NSWC or USSOCOM experimentation venues to develop actionable evaluation reports on invited innovations and their ability to address prioritized SOF capability gaps and needs. Participation may be accomplished through an independently arranged Phase II demonstration/Pitch with the Government. Discussions may continue outside of the Phase II session. Participation in Phase II will be entirely at the offeror's expense. Favorably evaluated capabilities may be selected to receive a Request for Proposal (RFP) that marks the beginning of Phase III. **Note, Phase II is optional for the CSO process, and may not always be conducted, or may not be required for every successful Phase I submission.**

1.4.3 Phase III (Proposal): The Government will only advance companies to Phase III if it intends to award a contract or agreement for the proposed solution. Companies will collaboratively build Statements of Work with the Government team and negotiate Contract/Agreement Terms and Conditions for Award.

1.4.4 The Government desires to select UxS capabilities for further action as a result of this CSO. However, if a particular company or companies are not selected under any Phase, there shall be no charge to the Government for efforts made and no reimbursement from the Government. Any company non-selected for consideration under any Phase may request continued conversations with the Government regarding the company's proposed capabilities, products or services.

1.5 AOI 1: "UxS as a Service" Solution. The Government is pursuing solutions to create a collaborative environment for continuous innovation by using what can broadly be described as a subscription-based model, to include real-time, direct feedback for improvements and modifications, as well as regular updates/upgrades and training, maintenance, and spare parts support provided by the vendor (or "company"). The Government is open to UxS and UxS-related systems of any size or military-applicable capability, to ensure a balanced, multi-domain portfolio, there is a particular interest in expanding the range of available undersea systems.

1.5.1 Solutions under this AOI should provide the Government a listing or description of all available UxS and UxS-related products, including but not limited to, complete UxS systems (such as tethered and non-tethered Unmanned Undersea Vehicles), platforms, payloads, communications and data transfer equipment, software and AI options, PED systems, Command and Control (C2) software and AI, UxS attachments or payloads, launch and recovery systems or integration, pieces and parts, mission planning software or AI, etc. UxS

and related products should be offered at the cheapest reliable price and most readily available (for speed of acquisition) to support the “consumable” UxS approach. Offerings will be clear regarding the following:

- 1.5.1.1 The number of systems available
- 1.5.1.2 How quickly systems can be delivered and rate of replenishment (where applicable)
- 1.5.1.3 C2 systems with which they are interoperable (e.g., Lattice, Hivemind, etc.)
- 1.5.1.4 What other UxS they can communicate directly with
- 1.5.1.5 Whether the system follows the “Modular Open Systems Approach”

1.5.2 Offerings should be clear regarding compliance with applicable rules and regulations or other requirements, including potential future matters, for example:

- 1.5.2.1 Restrictions on the origin of its components: (e.g., no prohibited covered country components)
- 1.5.2.2 Remote ID
- 1.5.2.3 FAA/ICAO/DoW compliance
- 1.5.2.4 Safety assurance
- 1.5.2.5 BVLOS readiness
- 1.5.2.6 Cybersecurity
- 1.5.2.7 Insurance/liability
- 1.5.2.8 Licenses
- 1.5.2.9 Updates/ Upgrades to the UxS platforms or related products

1.6 AOI 2: FPV ISR Operations – Submissions should address innovative commercial solutions that can improve an individual user to enhance the situational awareness (SA) of their local area of operations (AO) through employment of an FPV system. Advanced technologies that enable the user to operate the system easily while locating, identifying and reporting targets/locations and/or FPV systems that have multiple capabilities or technologies, or which can be configured for multiple ISR operation types are encouraged.

1.7 AOI 3: FPV Kinetic Operations - Submissions should address innovative commercial solutions that enable an individual user to kinetically engage targets/locations in their AO through employment of an FPV system. Advanced technologies that enable the user to operate the system easily while locating, identifying and engaging targets/locations are welcomed. FPV systems that can be configured or reconfigured to conduct either Intelligence, Surveillance and Reconnaissance (ISR) or Kinetic engagement are encouraged.

1.8 Technical Capabilities List for AOI 2 & 3: To maximize relevance and competitiveness, proposed solutions should also address the following system characteristics:

1.8.1 Architecture:

- 1.8.1.1 Standardization
- 1.8.1.2 Interoperability / modularity / openness

1.8.2 Cybersecurity & Compliance:

- 1.8.2.1 National Defense Authorization Act (NDAA) Compliance
- 1.8.2.2 If relevant, ability to provide a complete platform for assessment

1.8.3 Platform Characteristics:

- 1.8.3.1 Operate from 0m – 50K distance from user
- 1.8.3.2 System operating time to meet user distance characteristic or 45-60 min duration
- 1.8.3.3 Ability to employ kinetic or non-kinetic effects
- 1.8.3.4 Ability to be controlled in FPV and/or Non-FPV modes
- 1.8.3.5 Ability to operate via radio communication, fiber optic, or other controls to include autonomous operations or other modes
- 1.8.3.6 Ability to employ payloads which can be attached, changed, or removed
- 1.8.3.7 Ability to hover with max payload
- 1.8.3.8 Ability to train operators virtually
- 1.8.3.9 Electromagnetic interference (EMI) resilience / radio(s) used / means of communication and Command and Control in an EMI environment
- 1.8.3.10 Global Navigation Satellite System (GNSS) resilience and alternative navigation capabilities
- 1.8.3.11 Payloads (cargo and sensors the platform can host / platforms the payload can be hosted by / ability of software to work with multiple platforms / airborne repeaters and mesh nodes / diversion decoys)
- 1.8.3.12 Technology (autonomous capability indoor & urban / swarm and saturation technology / hunter-killer ISR strike chain, pixel lock auto tracking)
- 1.8.3.13 Fixed wing kinetic capable
- 1.8.3.14 Weatherproofing (ingress protection, or IP rating)
- 1.8.3.15 Ability to launch off a maritime vessel
- 1.8.3.16 Waterproof ISR sUAS sub surface launch
- 1.8.3.17 Setup / deployment time and effort
- 1.8.3.18 Available Size, Weight, and Power (SWaP) for additional Payloads
- 1.8.3.19 Relevance to geographic and climactic environments
- 1.8.3.20 Ability to supply at least three (3) prototypes by the dates listed in the resultant contract Some capabilities will not need to have three (3) prototypes due to their design or employment. If that is relevant to your submission, please note it.

1.8.4 Business and Market Analysis

- 1.8.4.1 Current and planned future production rate
- 1.8.4.2 Provide an explanation of supply chain and identify potential risks with suppliers.
- 1.8.4.3 Price (provide a range of pricing to accommodate different volumes, payloads, training, and warranty options)
- 1.8.4.4 If selected for Phase II demonstration, ability to provide at least three (3) fully operational units by first day of the demonstration window your submission is scheduled for and two (2) trained operators during the demonstration

1.8.4.5 Lifetime delivered sales of the proposed solution

1.9 AOI 4: UxS Training – Submissions should address innovative commercial solutions that can improve an individual user to enhance the situational awareness (SA) of their local area of operations (AO) through employment of a UxS platform. Advanced technologies that enable the user to operate the system easily while locating, identifying and reporting targets/locations and/or UxS platforms that have multiple capabilities or technologies, or which can be configured for multiple ISR operation types are encouraged.

1.9.1 Maritime Environment Expertise

1.9.1.1 Shipboard tactics

1.9.1.2 Over-The-Beach tactics

1.9.1.3 SWARM in a maritime environment

1.9.1.4 Marsupial operations from USV platforms

1.9.1.5 MIO proficiency (new technology and tactics into MIO)

1.9.2 Autonomy in maritime environment

1.9.2.1 UxS System innovation/design

1.9.2.2 Build-program-fly-target

1.9.3 Training with Innovative UxS Technologies

1.9.3.1 Defensive and offensive electronic warfare with UAS

1.9.3.2 Close quarters battle to include confined space/dynamic flight maneuvering.

1.9.3.3 Surveillance and reconnaissance with UAS.

1.9.3.4 Operating UxS in a denied environment.

1.9.3.5 UxS operations in high jamming and interference environments.

1.9.4 Questions to be addressed:

1.9.4.1 Do you have an available course listing?

1.9.4.2 Do you have facilities for training?

1.9.4.3 Are you available to travel to Government installations for training?

1.9.4.4 Do you provide equipment as part of the training?

1.9.4.5 How many students can be taught in one course of instruction?

1.9.4.6 What is the length of the courses you offer?

1.9.4.7 How many courses can you do concurrently?

1.9.4.8 Do you provide train the trainer courses?

1.9.4.9 Do you have instructors with SOF experience?

1.10 AOI 5: Unmanned Surface Vehicle (USV) Operations – Submissions should address innovative commercial solutions that improve a user's ability to enhance situational awareness (SA) and control within their maritime area of operations (AO) through the employment of a USV system. We are interested in advanced technologies that enable the operator to easily control the system while locating, identifying, and reporting targets or points of interest. USV systems that can be configured or reconfigured to conduct a range of missions—from Intelligence, Surveillance, and Reconnaissance (ISR) to kinetic engagements—are highly encouraged.

1.11 AOI 6: Unmanned Underwater Vehicle (UUV) Operations – Submissions should address innovative commercial solutions that enable an individual user to conduct subsurface ISR, seabed reconnaissance, and bathymetric surveying through the employment of a UUV system. Advanced technologies that allow the user to easily operate the system while locating, identifying, and engaging targets are welcomed. UUV systems that can be configured to

conduct either ISR or kinetic engagements, or that possess multiple capabilities, are encouraged.

1.12 Technical Capabilities List for AOI 5 & 6: To maximize relevance and competitiveness, proposed solutions should also address the following system characteristics:

Submissions should address innovative commercial solutions and maritime system designs that enable an individual user or small team to control Unmanned Surface Vehicle (USV) and Unmanned Underwater Vehicle (UUV) systems. We are particularly interested in advanced technologies that enhance operational effectiveness across a range of maritime missions.

Desired capabilities include, but are not limited to:

- 1.12.1 Versatile USV Payloads: Systems capable of marsupial UAS launch and recovery, Counter-UxS operations (against USVs, UUVs, and UAS), Maritime Interdiction Operations (MIO) technology, and Over-The-Horizon targeting.
- 1.12.2 Portable Systems: Small, man-packable USV and UUV systems, which may have kinetic capabilities, bathymetric surveying, acoustic communications, and C2 Nodes.
- 1.12.3 Counter-Air Systems: Effective Counter-UAS packages suitable for USVs.
- 1.12.4 Counter-Maritime Systems: Effective Counter-USV/UUV effectors.
- 1.12.5 Advanced Technologies: Innovations in Mine Countermeasure (MCM) technology and Maritime Swarm technology are highly encouraged.
- 1.12.6 Systems that can be easily configured or reconfigured to conduct missions ranging from Intelligence, Surveillance, and Reconnaissance (ISR) to kinetic engagements are welcomed. The focus is on solutions that allow the user to easily operate the system while locating, identifying, and engaging targets within the Maritime Domain.
- 1.12.7 Architecture:
 - 1.12.7.1 Standardization
 - 1.12.7.2 Interoperability / modularity / openness
- 1.12.8 Cybersecurity & Compliance:
 - 1.12.8.1 National Defense Authorization Act (NDAA) Compliance
 - 1.12.8.2 If relevant, ability to provide a complete platform for assessment
- 1.12.9 Platform Characteristics
 - 1.12.9.1 Ability to supply at least three (3) prototypes by the dates listed in the resultant contract Some capabilities will not need to have three (3) prototypes due to their design or employment. If that is relevant to your submission, please note it.
 - 1.12.9.2 USV Payloads (marsupial UAS launch and recovery / C-UxS capabilities against USV, UUV, UAS / Maritime Interdiction Operations (MIO) technology / Over-The-Beach targeting)
 - 1.12.9.3 Small man packable USV systems (kinetic capable but not mandatory)
 - 1.12.9.4 Counter USV (C-USV) systems
 - 1.12.9.5 Maritime System innovation/design
 - 1.12.9.6 Mine Countermeasure (MCM) system/technology
 - 1.12.9.7 Maritime Swarm technology/systems
 - 1.12.9.8 Small man packable UUV systems (kinetic capable but not mandatory)
- 1.12.10 Business and Market Analysis
 - 1.12.10.1 Current and planned future production rate

1.12.10.2 Provide an explanation of supply chain and identify potential risks with suppliers.

1.12.10.3 Price (provide a range of pricing to accommodate different volumes, payloads, training, and warranty options)

1.12.10.4 If selected for Phase II demonstration, ability to provide at least three (3) fully operational units by first day of the demonstration window your submission is scheduled for and two (2) trained operators during the demonstration

1.12.10.5 Lifetime delivered sales of the proposed solution

1.13 This notice fulfills synopsis requirements. Synopsis under FAR subpart 5.2 of the individual contract actions under this CSO is not required. Companies are encouraged to monitor SAM.gov as this notice may be updated with additional AOIs.

SECTION 2 – GUIDELINES FOR SOLUTION BRIEFS, DEMONSTRATIONS AND PROPOSALS

2.1 The purpose of the Phase I Solution Brief is to identify innovative contract solutions related to each AOI that effectively address SOF prioritized capability gaps. Offerors are encouraged to follow the instructions detailed below. The Government aims to provide an evaluation response as soon as practical and no later than 45 days after submission for selection into Phase II and 30 days after the demonstration/ experimentation event.

2.2 Submissions – Phase I Submissions should be made via Vulcan as identified below in this section. If sensitive or classified, offerors may request additional instructions by submitting an email to: NSW.CONTRACTING.CSO.SHDMBX@socom.mil. Demonstration/pitch events that fulfill the requirements of Phase II of this CSO may reference this process in their submission instructions.

Submission Deadlines and location for submission:

AOI 1: Submissions due date is extended to 7 April 2026. Submission link is: <https://vulcan-sof.com/login/ng2/submission?collectionUuid=e93ae11d-355b-48b3-b8be-8a7b4f55ba78>

AOI 2 and 3: Bi-annual Submissions for either AOI 2 or AOI 3 shall be due on 9 January 2026, 9 April 2026 and 9 July 2026, and 9 October 2026, Evaluations response will be conducted on bi-annual submissions. Submission link is: <https://vulcan-sof.com/login/ng2/submission?collectionUuid=a2bcad15-6b21-4640-ba26-63d172d3ca4d>

AOI 2&3: Bi-annual: [Submissions due date for either AOI 2 or AOI 3 is extended and shall be due no later than \(NLT\) 31 December 2026.](#) <https://vulcan-sof.com/login/ng2/submission?collectionUuid=a2bcad15-6b21-4640-ba26-63d172d3ca4d>

AOI 4: Bi-annual Submissions for AOI 4 shall be due NLT 9 April 2026. Submission link is: <https://vulcan-sof.com/login/ng2/submission?collectionUuid=f9989d55-ade0-4b5b-933c-520d5f4663f1>

AOI 4: Bi-annual Submissions for AOI 4 shall be due NLT 9 October 2026. Submission link will be included in this posting by 30 August 2026.

AOI 5&6: [Submissions for either AOI 5 or AOI 6 shall be due no later than \(NLT\) 31 December 2026.](https://vulcan-sof.com/login/ng2/collection/0581f987-3c34-44a6-8517-5aca6cbf743b)
<https://vulcan-sof.com/login/ng2/collection/0581f987-3c34-44a6-8517-5aca6cbf743b>

2.3 Guidelines for Solution Brief Submissions:

2.3.1 Costs of preparing and submitting solution briefs are at the Offeror's expense.

2.3.2 Marketing information such as unnecessarily elaborate brochures or collateral are not desired. The submissions must be concise and substantive and directly address the specified AOI/interest items provided by the Government.

2.3.3 Use of diagram(s) or figure(s) to depict the proposed solution is strongly encouraged. Generic marketing logos and graphics do not help our assessors visually understand the solution being proposed. It is encouraged to leverage dynamic media content to visually explain solutions (including diagrams, short videos, etc.).

2.3.4 Multiple solution briefs addressing different contracting methodologies may be submitted by the same organization; however, each solution brief may only address one unique concept or offering based on the AOI identified.

2.3.5 Training Solution submissions should include: instructor qualifications, instructor to student ratios, class size limits, course ROM, hands on content, equipment available during training, train the trainer capability, SOF experience, and facilities utilized (Government vs Contractor).

2.3.6 The period of performance for any solution or proposal submitted under this CSO should generally be no greater than 12 months unless otherwise negotiated.

2.3.7 Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.

2.3.8 All solution briefs shall be unclassified. Vulcan contains access control options for companies to determine who can have access to their submission. This is articulated in Vulcan when the account is established. The Government may determine a solution brief needs to be discussed and/or expanded in a classified setting and may contact the company to do so.

2.3.9 Foreign-owned businesses may submit independently or through some form of teaming arrangement with one or more United States-owned businesses. Note: Some discussion and evaluation in Phase II may require personnel clearances depending on the venue. However, the ability to obtain a contract based upon a submission may depend upon the ability of the foreign-owned business to obtain necessary export clearances and approvals.

2.3.10 Questions regarding the objectives or requirements of the solution brief should be addressed to: NSW.CONTRACTING.CSO.SHDMBX@socom.mil

2.4 Solution Brief Preparation and Evaluation: Submitter's solution brief should be concise and substantive not to exceed five (5) pages using twelve (12) point font. It must describe the contract vehicle in terms of the problem(s) it is solving within relevant context and answer the questions provided by the Government as part of the submission process for phase 1. Submitters can provide additional content such as attachments of briefs, slides, and other materials, but note that the quality, relevance, and understanding of the information provided are more desirable to Government assessment teams than the volume of information provided.

2.4.1 Solution Brief Content:

2.4.1.1 Vulcan registration and access provide for user and organization profiles that can be managed globally for submissions provided by single organizations. Ensure that such information is up to date in Vulcan. – i.e., Company Name, Phone, and Address.

2.4.1.2 Provide a descriptive title for your scout card submission. Remember that each scout card submission should represent one unique contract proposal.

2.4.1.3 Technical and Business Points of Contact, E-Mail Addresses. You may also provide Government user (if applicable) or reference information.

2.4.1.4 Capability Description - Provide a summary of the contract vehicle and the problem it is designed to solve.

2.4.1.5 Capability Differentiators: Describe the unique aspects of your proposed mechanism and how it differs from other similar/comparable capabilities or concepts, especially as it pertains to the specified AOI.

2.4.1.6 Readiness Timelines for your proposed contract offering to better understand your proposed solution and what is needed to further mature the contract vehicle to meet the AOI's objectives.

2.4.1.7 You may be asked additional questions such as:

2.4.1.7.1 Whether the effort includes a pilot or demonstration of the concept.

2.4.1.7.2 If development or adaptation is proposed, identify a suggested path to mature the concept to meet the stated need. Explain how the technology, process, method, or

application is *innovative* IAW DFARS 212.7001. Previous work with NSWC or USSOCOM Component if applicable.

2.4.1.7.3 Rough Order of Magnitude (schedule and budget) for efforts needed to mature the mechanisms to meet operational needs and/or acquisition requirements.

2.4.1.7.4 Offeror Viability. Provide a brief overview of the offeror including summary of current investments to date or a summary of the business model for the delivery of the capability to the Government. Provide an explanation of supply chain and identify potential risks with suppliers.

2.4.1.7.5 A summary of product commercialization and go-to-market strategy.

2.4.2 Solution Brief Basis of Evaluation: Individual solution briefs will be evaluated without regard to other submissions received under this announcement against the following criteria:

2.4.2.1 Technical:

2.4.2.1.1 Merit – feasibility and relevancy of the proposed solution to address the AOI in tangible ways both technically and functionally. Also, ability to address vulnerabilities of the proposed solution thoughtfully and coherently in current and emerging context.

2.4.2.1.2 Innovation – degree to which the proposed solution provides an innovative, unique, underutilized, and/or unconventional approach to solve a problem/gap under the AOI

2.4.2.2 Importance to Agency programs:

2.4.2.2.1 Relevance – how well the proposed solution relates to the AOI

2.4.2.2.2 Business Viability – strength of the offeror and commercial viability of the proposed solution. The Government may elect to use internal and external market research in the evaluation of an offeror's viability. The Government may also request the Capability Provider's interest in external Venture Capital from strategic Government partners to accelerate maturation and delivery of capabilities of interest to SOF and its partners.

2.4.2.3 Affordability: Price and Budgetary considerations.

2.4.3 After evaluating a solution brief, the Government may elect to invite a Company to demonstrate their contracting solution via tabletop exercise and request additional information from the offeror. The Government reserves the right to move to award without prior demonstration.

2.5 Demonstration/Pitch Content: The objective is to provide evidence and more details on the technical merit, operational relevance, and business viability of the proposed solution

submitted in the Solution Brief. Regardless of format, the Demonstration/Pitch must also address:

2.5.1 Rough Order of Magnitude (ROM) price and notional schedule.

2.5.2 NSWC / SOF utility and how this concept could be tested within a SOF military environment.

2.5.3 Describe the expected or intended operational users of the technology.

2.5.4 Data Rights and Intellectual Property Assertions.

2.5.5 The Government may request additional information outside of the /demonstration / experimentation.

2.5.6 If proposing a prototype, state how this effort constitutes a prototype.

2.6 Demonstration/Pitch Basis of Evaluation: Individual demonstration / experiments will be evaluated according to the process utilized for that purpose. In addition to Phase I basis of evaluation, assessments aim to validate proposal in terms of their viability and applicability. Other evaluation factors for selecting proposals to move forward to award may include current priorities of relevant importance to agency programs, as well as funds availability.

2.7 The Government will aim to complete Phase II evaluations and offeror notification within 30 calendar days of the demonstration / experimentation. All companies selected to proceed to Phase II will receive Phase II notification; however, only favorably evaluated solution /demonstrations / pitches will be eligible to enter Phase III of the CSO process, which may lead to a Request for Proposal (RFP) at the sole discretion of the government.

2.8 Proposal Preparation: RFPs will include preparation instructions. During this Phase, companies will collaboratively develop Statements of Work (SOW) with the Government teams for their specific projects and negotiate Terms and Conditions into their Contracts.

SECTION 3 – AWARD

3.1 Only warranted Contracting and Agreements Officers may obligate the Government and issue awards for contracts or OTs. No other feedback or statements across any other Phase of the CSO process shall be interpreted to obligate the Government or create an expectation of award.

3.2 Awards made under this CSO will be primarily FAR based Firm Fixed-Price contracts or OT Agreements under 10 U.S.C 4022-23. There is potential for Prototypes Projects with follow-on noncompetitive Production Agreements IAW 10 U.S.C 4022(f). Contract type will be determined during Phase III. Multiple awards may be made to pursue similar or dissimilar solutions should they all meet the technical criteria, be selected for award, and if funds are available.

3.3 In the event an OT Agreement is awarded under 10 U.S.C 4022 for a Prototype Project, a follow-on production agreement may be awarded to the Prototype Project recipient in a non-competitive manner based on completion of success criteria developed in the Prototype Project. Successful completion can occur prior to the conclusion of a prototype project to allow the Government to transition any aspect of the prototype project determined to provide utility into production while other aspects of the prototype project have yet to be completed.

3.4 To receive an award, Companies must be a registered entity in the System for Award Management (SAM). This system verifies identity and ensures that payment is sent to the right party. The link can be found here: <https://sam.gov/SAM/>

3.5 In general, to invoice and receive payment, Companies must register in Wide Area Work Flow (WAWF). The Contracting Officer/Agreement Officer will provide WAWF assistance during Phase 3.

SECTION 4 - NON-GOVERNMENT ADVISORS

Non-Government advisors may be used in the evaluation of solution briefs and proposals and will have signed Non-Disclosure Agreements (NDAs) with the Government. The Government understands that information provided in response to this CSO is presented in confidence and may contain trade secret or commercial or financial information, and it agrees to protect such information from unauthorized disclosure to the maximum extent permitted and as required by law.

SECTION 5 - CONTACT INFORMATION

Be advised, only a Contracting Officer has the authority to enter into a binding agreement on behalf of the Government and has exclusive authority to change the terms of a contract or agreement. Inquiries may be sent to the Contracting Officer for this CSO announcement via NSW.CONTRACTING.CSO.SHDMBX@socom.mil.

SECTION 6 – DEFINITIONS

Innovative: “Innovative” is defined as (1) Any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or (2) Any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.

Non-traditional Defense contractor (NDC): An entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to section 1502 of title 41 and the regulations implementing such section (see 10 U.S.C. 2302(9)).

Other Transaction Agreement (OTA): Legally binding instruments not subject to the requirements of the Federal Acquisition Regulation (FAR) obligating the Government for a purpose IAW 10 USC 4021, 4022 and 4023.

Procurement contract. A contract awarded pursuant to the Federal Acquisition Regulation.

Prototype Project: The term "prototype project" includes a project that addresses-

- (A) a proof of concept, model, or process, including a business process;
- (B) reverse engineering to address obsolescence;
- (C) a pilot or novel application of commercial technologies for defense purposes;
- (D) agile development activity;
- (E) the creation, design, development, or demonstration of operational utility; or
- (F) any combination of subparagraphs (A) through (E).

Although assistance terms are generally not appropriate in OT agreements, ancillary work efforts that are necessary for completion of the prototype project, such as test site training or limited logistics support, may be included in prototype projects. A prototype may be physical, virtual, or conceptual in nature. A prototype project may be fully funded by DoD, jointly funded by multiple federal agencies, cost-shared, funded in whole or part by third parties, or involve a mutual commitment of resources other than an exchange of funds.